

Caste-based Discrimination and Untouchability (Offense and Punishment) Act, 2011

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 6

Caste-based and other Untouchability and Discrimination (Offence and Punishment) Act, 2068 (2011)

Certification and Publication Date

2068/2/18 (June 3, 2011)

Amending Acts

1. Some Nepal Acts Amendment Act, 2072 (2015) 2072/11/13 (February 25, 2016)
2. Caste-based and other Social Untouchability and Discrimination (Offence and Punishment) (First Amendment) Act, 2075 (2018) 2075/6/2 (September 18, 2018)
3. Some Nepal Acts Amendment to Make Conform with the Constitution of Nepal Act, 2075 (2018) 2075/11/19 (March 3, 2019)

Act No. 4 of the year 2068 (2011)

An Act Made to Provide for Offence and Punishment relating to Caste-based and other Social Untouchability and Discrimination

Preamble: Whereas, it is expedient to assimilate the principle that every person is equal in rights and human dignity, to create a situation where there is no caste-based or other social untouchability and discrimination on the basis of amended by the First Amendment.caste, race, descent, community, occupation or profession, or physical condition in the name of custom, tradition, religion, culture, rituals or any other name, to protect the right of every person to equality, freedom and to live with dignity, to penalize untouchability, boycott, prohibition, ostracism, contempt or other similar inhuman discriminatory acts committed in any place, to provide for compensation to the person victimized by such act, to strengthen good relations among the general public, to maintain national unity intact, and to make timely provisions for creating an egalitarian society;

Now, therefore, the Constituent Assembly, in its capacity as the Legislature-Parliament pursuant to Article 83 of the Interim Constitution of Nepal, 2063 (2007), has enacted this Act. 1. Short Title and Commencement: (1) This Act may be called the "Caste-based and other Social Untouchability and Discrimination (Offence and Punishment) Act, 2068 (2011)."

(2) This Act shall apply throughout Nepal and shall also apply to a Nepali citizen who commits an offence under this Act against a Nepali citizen while residing outside Nepal.

(3) This Act shall come into force immediately. 2.

Definition: Unless the subject or context otherwise requires, in this Act,- (a) "Caste-based and other social untouchability and discrimination" shall be understood as an act pursuant to Section 4. (b) "Offence" shall be understood as an act pursuant to Section 3. (c) "Public place" shall be understood as a place used for public purposes such as a government or non-government office, educational or industrial establishment, ancient

monument, rest house (pauw?), water spout (dhara?), well, stepwell, pond, resting place (chautara?), road or street, means of public transport, cremation ground (masnaga?), garden-park, any kind of religious site, and the term shall also mean any other place for the sale or distribution of goods or services to the public. (d) "Public service" shall be understood as a government or non-government office, public institution, transport, industrial or educational establishment, company, firm, shop, hotel, resort, lodge, restaurant, café, cinema hall or theatre, and the term shall also mean any service and facility for public use or benefit provided by any government or non-government body. (e) "Public ceremony" shall be understood as any type of religious, social or cultural ceremony organized publicly, such as a feast, worship (pajpaha), sacrifice (yajña), ritual (anuhana), birth, naming ceremony (namakara?), marriage, death. (f) "Person holding a public office" shall be understood as a person holding a position to exercise any public authority or to perform any duty or fulfill any obligation pursuant to the Constitution, other prevailing law, or the decision or order of the concerned body or authority, and the term shall also mean an office-bearer or employee holding any position in a public institution. (g) "Prescribed" or "as prescribed" shall be understood as prescribed or as prescribed in the rules framed under this Act. 2A. Right against Caste-based and other Social Untouchability and Discrimination: Inserted by the First Amendment.(1) Every person shall have the right against caste-based and other social untouchability and discrimination. (2) Pursuant to sub-section (1), every person shall have the following rights:- (a) The right to equal treatment from the court or other judicial body, (b) The right to equal protection in services and facilities provided by any government body, (c) The right to equal access to public service, (d) The right to move and reside within and outside Nepal, (e) The right to equal participation in cultural activities, (f) The right to marry and to choose a spouse, (g) The right to assemble peacefully and to form organizations, (h) The right to choose employment and to work, (i) The right to equal pay for equal work, (j) The right to equal access to public places, (k) The right to prompt judicial remedy and appropriate compensation against caste-based and other social untouchability and discrimination.

4. Acts Deemed to be Caste-based and other Social Untouchability and Discrimination: (1) If any person performs or causes to be performed any act under this Section against any person on the basis of custom, tradition, religion, culture, rituals, amended by the First Amendment.caste, race, descent, community, occupation or profession, or physical condition, he/she shall be deemed to have committed caste-based and other social untouchability and discrimination.

(2) No one shall, on the basis of custom, tradition, religion, culture, rituals, amended by the Some Nepal Acts Amendment to Make Conform with the Constitution of Nepal Act, 2075 (2018).caste, race, descent, community, occupation or profession, or physical condition, commit or cause to be committed caste-based and other social untouchability and discrimination by performing any of the following acts in a public or private place:-

(a) Prohibiting entry, presence or participation, or imposing any kind of obstruction, control or restriction, or
(b) Ostracizing, socially boycotting or discriminating in any manner from a public place or ceremony, or imposing a prohibition on such acts, or exhibiting any other kind of intolerant behavior.

(3) No one shall deprive any person of using or enjoying a public service on the basis of amended by the Some Nepal Acts Amendment to Make Conform with the Constitution of Nepal Act, 2075 (2018).caste, race, descent, community, occupation or profession, or physical condition.

(4) No one shall deprive any person of organizing a public ceremony or performing any act organized publicly on the basis of amended by the Some Nepal Acts Amendment to Make Conform with the Constitution of Nepal Act, 2075 (2018).caste, race, descent, community, occupation or profession, or physical condition.

(5) No one shall incite, abet, or perform any act that encourages another to commit an act of caste-based untouchability or discrimination, or knowingly participate in any such activity.

(6) No one shall prohibit or restrict any person from engaging in any occupation or profession, or compel any person to engage in any occupation or profession on the basis of amended by the Some Nepal Acts Amendment to Make Conform with the Constitution of Nepal Act, 2075 (2018).caste, race, descent, community, occupation or profession, or physical condition.

(7) No one shall deprive or cause to be deprived any person of performing any religious act on the basis of amended by the Some Nepal Acts Amendment to Make Conform with the Constitution of Nepal Act, 2075 (2018).caste, race, descent, community, occupation or profession, or physical condition.

(8) No one shall prevent or prohibit any person from producing, selling or distributing any goods, services or facilities on the basis of amended by the Some Nepal Acts Amendment to Make Conform with the Constitution of Nepal Act, 2075 (2018).caste, race, descent, community, occupation or profession, or physical condition.

(9) No one shall, while producing, selling or distributing any goods, services or facilities, prohibit a person of a particular caste or race from purchasing or obtaining such goods, services or facilities, or produce, sell or distribute goods, services or facilities only to persons of a particular caste or race, or cause the same to be done.

Inserted by the First Amendment.

(10) No one shall commit or cause to be committed any act of boycotting a family member, preventing entry into the house, or expelling or compelling exit from the house or village on the basis of caste or race.

(11) No one shall, on the basis of amended by the Some Nepal Acts Amendment to Make Conform with the Constitution of Nepal Act, 2075 (2018).caste, race, descent, community, occupation or profession, prohibit any person from contracting an inter-caste marriage consented to by bride and groom who have attained the age under prevailing law, or force in any manner not to perform the naming ceremony (nwara?) of a child born from such marriage, or to dissolve the marriage already performed, or cause the same to be done.

(12) Amended by the First Amendment.No one shall, by means of broadcasting, publishing or displaying audio-visual material, articles, writings, pictures, shapes, cartoons, posters, books or literature, or through electronic means or any other manner, portray any person or community as superior or inferior on the basis of their origin, caste or race, justify social discrimination based on caste, race or untouchability, propagate ideas based on untouchability and caste superiority or hatred, or in any way encourage or cause to encourage caste-based discrimination.

(13) No one shall, on the basis of amended by the Some Nepal Acts Amendment to Make Conform with the Constitution of Nepal Act, 2075 (2018).origin, caste, race, descent, community, occupation or profession, refuse to employ any person in any type of labor, or dismiss from labor, or discriminate in remuneration, or cause the same to be done. 5.

Complaint: (1) Any person who comes to know of the commission or intended commission of an offence under Section 4 may file a complaint in the nearest police office as prescribed. (2) Notwithstanding anything contained in sub-section (1), if any person commits an offence under Section 4 abroad, a complaint shall be filed in the nearest police office of the district where such person resides or where the accused is located. (3) If the relevant police office does not register the complaint received under sub-section (1) or (2), or does not

take necessary action under prevailing law, the concerned person may also file a complaint of that matter with the National Dalit Commission or amended by the Some Nepal Acts Amendment Act, 2072 (2015).the local level as prescribed. (4) The complaint received under sub-section (3) shall be sent in writing to the relevant police office by the National Dalit Commission or amended by the Some Nepal Acts Amendment Act, 2072 (2015).the local level as prescribed. (5) Upon receipt of such written communication under sub-section (4), the relevant police office shall make necessary inquiry into the matter and proceed with necessary action under the prevailing law on such complaint. 6. May Seek Assistance in Investigation of Case: While investigating a case under this Act, the investigating officer may, as necessary, seek the assistance of local leaders, civil society, or representatives of associations or organizations engaged in activities related to the rights or upliftment of persons victimized by caste-based and other social untouchability and discrimination, including the dalit community. 7. Punishment: (1) If any person commits the following offences, the punishment shall be as follows:- (a) For a person committing an offence under sub-section (2), (3), (4), (5), (6) or (7) of Section 4, amended by the First Amendment.imprisonment from three months to three years and a fine from fifty thousand rupees to two hundred thousand rupees, (b) For a person committing an offence under sub-section (8), (9), (10), (11), (12) or (13) of Section 4, amended by the First Amendment.imprisonment from two months to two years and a fine from twenty thousand rupees to one hundred thousand rupees, (c) For a person who assists, encourages, abets or attempts to commit caste-based and other social untouchability and discrimination, half of the punishment provided for the principal offender.

Inserted by the First Amendment.(a1) If a person who has been punished for any offence under Section 4 again commits an offence under the same Section, such person shall, for each subsequent offence, be liable to twice the punishment mentioned in clause (a) or (b) of sub-section (1).

(2) If a person holding a public office commits an offence under sub-section (1), such person shall be liable to an additional punishment of fifty percent of the punishment mentioned in that sub-section. 8. Punishment for Obstructing: If any person obstructs or opposes the investigation or inquiry work of an offence punishable under this Act, the court may, on the basis of the report of the officer conducting the investigation and inquiry, impose half of the punishment provided for the offender. 9. Compensation: (1) If any person is found to have committed an offence under this Act, the court shall order the offender to pay compensation to the victim up to two hundred thousand rupees.

(2) If the offender has caused any physical harm or loss to the victim, the court shall, based on the nature thereof, order the offender to pay to the victim a reasonable amount for treatment expenses or additional harm or loss.

(3) If the amount under sub-section (1) or (2) cannot be immediately recovered from the offender, such amount shall be paid from the Victim Relief Fund under the prevailing law, and the amount so paid shall be recovered from the concerned offender and reimbursed to the said Fund. 10. Limitation: A case under this Act shall be filed within three months from the date of commission of the offence. 11. Government as Plaintiff: A case under this Act shall be a government-plaintiff case, and such case shall be deemed to be included in Schedule-1 of the National Criminal Procedure Code, 2074 (2017). 12. To Follow Summary Procedure: While conducting proceedings and adjudicating a case under this Act, the procedure under the Summary Procedure Act, 2028 (1971) shall be followed. 13. Punishment under Prevailing Law: If any act deemed an offence under this Act is also an offence under other prevailing law, nothing written in this Act shall be deemed to prevent the filing and proceeding of a case under such prevailing law. 14. To be Governed by this Act: Matters provided for in this Act shall be governed by this Act, and other matters shall be governed by the

prevailing law. 15. Duty to Assist: It shall be the duty of all concerned to assist in the investigation and inquiry work of a case under this Act. 16.